

WRITTEN SUBMISSIONS ON BEHALF OF THE CLAIMANT

Matter: ARBITRATION CASE NO. ARB/114/2026
Filed by: Meridian Infra Projects Limited

1. RA BILL NO. 7 (ISSUE 1). The certification register maintained by the Claimant's Engineer-in-Charge, proved through the testimony of Ms. Neha Kohli and not effectively controverted in cross-examination, records RA Bill No. 7 at Rs. 89,40,000. The Respondent's figure of Rs. 92,40,000 rests solely on an uncountersigned internal working sheet that was not put to the Claimant at any time prior to the Statement of Defence, and ought to be rejected.
2. ATTRIBUTION OF DELAY (ISSUE 2). The evidence establishes that site access for the third substation was handed over on 05.03.2025 without written objection. The Respondent's own witness conceded in cross-examination that its equipment mobilisation also contributed to the delay. Any residual land-clearance formality was minor and did not prevent the Respondent from commencing excavation at the main footprint of the site.
3. ENFORCEABILITY OF CLAUSE 22 (ISSUE 3). Clause 22 prescribes a capped, graduated formula tied to the value of the delayed portion of the works, consistent with the principle in *ONGC v. Saw Pipes Ltd.*, (2003) 5 SCC 705, and is a genuine pre-estimate of loss rather than an in terrorem penalty.
4. THE COUNTERCLAIM (ISSUE 4). The Respondent's own pleaded case is that the additional cable trenching works were directed telephonically, with no written variation order under Clause 13. No contemporaneous document corroborates either the instruction or its value; the Site Engineer's Memo relied upon is a unilateral record prepared by the Respondent alone. The counterclaim is accordingly without foundation and ought to be dismissed.
5. RELIEF (ISSUE 5). For the reasons set out above, the Claimant is entitled to an award for the sum claimed, together with interest and costs as prayed in the Statement of Claim.

Filed on 30.06.2026